

5.

CASE #	CASE NAME	HEARING NAME
CVRI2601276	CONGDON vs COUNTY OF RIVERSIDE	DEMURRER ON COMPLAINT

Tentative Ruling:

Defendant satisfied the statutory meet and confer requirement with a telephone call.

Defendant requests judicial notice of the job description for a Clinical Therapist I and an online license search result from the California Board of Science. Neither request is proper as Defendant is attempting to use a request for judicial notice to bootstrap evidence in on a pleadings challenge. Both documents are pulled from websites. (See Declaration of Sarah Swanson, ¶ 3 [describing obtaining Exhibit E from www.governmentjobs.com]; See also Request for Judicial Notice, ¶ 2, [describing Exhibit F as the result of a search on the California Department of Consumer Affairs public website].)

Not only is judicial notice of a website improper, but judicial notice of the truth of a documents' contents is also improper. (*Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375 [“[t]aking judicial notice of a document is not the same as accepting the truth of its contents”]; *Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 194 [cannot take judicial notice of a website].)

The request for judicial notice is denied in its entirety.

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Cal.* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded and of facts which may be inferred from those expressly pleaded. (*Crowley v. Kattelman* (1994) 8 Cal.4th 666, 672.) A demurrer, however, does not admit contentions, deductions, or conclusions of fact or law. (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

Uncertainty

While Defendant specially demurs to the complaint on the ground of uncertainty under CCP § 430.10(f), Defendant fails to explain how any of the claims are uncertain such that they cannot reasonably determine what issues must be admitted or denied, or what claims are directed against them. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) The complaint is not so unintelligible that Defendant cannot respond. **Accordingly, the demurrer is overruled on grounds of uncertainty.**

First and Second Causes of Action – FEHA Discrimination

Under California law, to establish a discrimination claim under FEHA, a plaintiff must show: (1) they belong to a protected class; (2) they were qualified for the position; (3) they suffered an adverse employment action; and (4) there are circumstances suggesting that the adverse action was taken because of the plaintiff's protected status. (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 355.)

First, Defendant argues that these causes of action fail because the reason for Plaintiff's termination was letting her license expire. This argument relies on Defendant's requests for judicial notice. As stated above, the requests are denied and this argument fails. Defendant also argues Plaintiff fails to allege any facts that demonstrate she was terminated because of gender, sex, or age. To state a cause of action against a government entity, every fact essential to the existence of statutory liability must be pled with particularity. (See *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal. App. 3d 792, 802.)

The first and second causes of action generally restate the elements of discrimination but lack specific facts supporting any of the elements. (Complaint, ¶¶ 16-21 and 23-28.) The general allegations likewise fail to meet the particularity requirement, only generally stating Defendant, "...routinely discriminated against Plaintiff and harassed Plaintiff because of Plaintiff's age, sex and gender." (*Id.* at ¶ 10.) It goes on to generally refer to Plaintiff experiencing "discriminatory and harassing treatment" and Defendant engaging in a "pattern and practice of surveilling Plaintiff...as part of a harassing campaign ... because of her age, sex, and gender." (*Id.* at ¶¶ 11-12.) There is also a general allegation of Defendant hiring younger employees for Plaintiff's position, but this allegation is not tied to Plaintiff's experience or discrimination. (*Id.* at ¶ 9.) There are no allegations connecting any adverse employment action to any discrimination or that Plaintiff was qualified for her position.

The court sustains demurrer to the first and second causes of action, with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.

Third Cause of Action – FEHA Harassment

"To prevail on a claim of hostile work environment under FEHA, an employee must show he or she was subjected to harassing conduct that was (1) unwelcome, (2) because of sex or gender, and (3) sufficiently severe or pervasive to alter the conditions of her employment and create an abusive work environment. [Citation.]" (*Wawrzenski v. United Airlines, Inc.* (2024) 106 Cal.App.5th 663, 692.)

The complaint is insufficient in alleging a claim for harassment, only generally restating the elements of a harassment claim without the required particularity. The only factual allegation is a general reference to a "systemic campaign to fire" Plaintiff, including

“baseless accusations of having an inappropriate relationship with her client, surveilling her..., and terminating her....” (Complaint, ¶ 31.) This is insufficient.

The court sustains the demurrer to the third cause of action, with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.

Fourth Cause of Action – Failure to Prevent

Government Code §12940(k) creates a separate actionable tort for failure to take reasonable steps necessary to prevent discrimination and harassment. Retaliation is a form of discrimination actionable under section 12940(k), therefore making it unlawful for an employer to fail to prevent retaliation. (*Taylor v. City of Los Angeles Dept. of Water & Power* (2006) 144 Cal.App.4th 1216, 1239-1240, *disapproved of on other grounds by Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158.) The general elements include a duty of care, breach, causation and damages. (See *Trujillo v. North County Transit District* (1998) 63 Cal.App.4th 280, 289.) As a rule, there can be no failure to prevent if there is no underlying claim. (*Id.* at 284.)

Because the first three causes of action are subject to demurrer, there is no underlying claim. **The court sustains the demurrer to the fourth cause of action, with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.**

The demurrer is sustained as all causes of action, with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.